

CCRB INVESTIGATIVE RECOMMENDATION

Investigator: Samuel Ross	Team: Squad #01	CCRB Case #: 201601843	☐ Force	☐ Discourt.	☐ U.S.
			☒ Abuse	☐ O.L.	☐ Injury
Incident Date(s) Sunday, 02/28/2016 12:25 PM	Location of Incident: 105th Precinct stationhouse	18 Mo. SOL 8/28/2017	Precinct: 105		
Date/Time CV Reported Sun, 03/06/2016 12:23 PM	CV Reported At: CCRB	How CV Reported: On-line website	Date/Time Received at CCRB Sun, 03/06/2016 12:23 PM		

Complainant/Victim	Type	Home Address

Witness(es)	Home Address

Subject Officer(s)	Shield	TaxID	Command
1. POM Steven Campisi	31825	936289	105 PCT
2. POM Nicholas Pica	07090	952115	105 PCT
3. POM William Lynch	1025	956053	105 PCT

Witness Officer(s)	Shield No	Tax No	Cmd Name
1. SGT Daniele Florit	1540	934926	105 PCT
2. POM Ryan Cloghessy	15204	951623	105 PCT

Officer(s)	Allegation	Investigator Recommendation
A . POM Steven Campisi	Abuse: Police Officer Steven Campisi did not obtain medical treatment for § 87(2)(b)	A . Unsubstantiated
B . POM William Lynch	Abuse: Police Officer William Lynch did not obtain medical treatment for § 87(2)(b)	B . Unsubstantiated
C . POM Nicholas Pica	Abuse: Police Officer Nicholas Pica did not obtain medical treatment for § 87(2)(b)	C . Substantiated

Case Summary

§ 87(2)(b) filed this complaint via the CCRB's website on March 6, 2016.

§ 87(2)(g)

On February 28, 2016, at approximately 12:25 PM, § 87(2)(b) was involved in a physical altercation with § 87(2)(b), a tenant of a residence that § 87(2)(b) owns, located at § 87(2)(b), in Queens. During the altercation, § 87(2)(b) struck the back of his head on the ground. Both § 87(2)(b) and § 87(2)(b), § 87(2)(b) girlfriend, called 911. PO Steven Campisi and PO William Lynch of the 105th Precinct responded. After a brief investigation, which revealed that § 87(2)(b) had sustained a laceration to the lip, PO Campisi arrested § 87(2)(b). PO Campisi and PO Lynch transported § 87(2)(b) to the 105th Precinct stationhouse. En route, § 87(2)(b) began to experience pain to the back of his head, and he allegedly asked the officers to obtain medical treatment for him. At the stationhouse, the arrest was assigned to PO Nicholas Pica of the 105th Precinct, and PO Campisi and PO Lynch resumed patrol. In the holding cell area, § 87(2)(b) allegedly asked PO Pica to obtain medical treatment for him. Ultimately, § 87(2)(b) was released with a Desk Appearance Ticket. § 87(2)(b) never received medical attention while in police custody (**Allegations A, B, and C**).

There is no video associated with this case.

Mediation, Civil, and Criminal Histories

- § 87(2)(b) rejected mediation § 87(2)(b)
- On April 29, 2016 the Office of the Comptroller informed the undersigned that § 87(2)(b) has retained the legal services of § 87(2)(b) and has filed a notice of claim in regards to the incident (Board Review 01).
- [§ 87(2)(b)] [§§ 86(1)(3)&(4)] [§ 87(2)(c)]

Civilian and Officer CCRB Histories

- This is the first CCRB complaint involving § 87(2)(b) (Board Review 02).
- PO Campisi, who has been a member of the NYPD for eleven years, has been a subject in four prior CCRB cases, only one of which has been fully investigated (Board Review 03). No allegations made against him have been substantiated § 87(2)(g)

- Neither PO Lynch nor PO Pica has been a subject in any prior CCRB case (Board Review 04 and 05).

Findings and Recommendations

Allegation A—Abuse of Authority: Police Officer Steven Campisi did not obtain medical treatment for § 87(2)(b)

Allegation B—Abuse of Authority: Police Officer William Lynch did not obtain medical treatment for § 87(2)(b)

Allegation C—Abuse of Authority: Police Officer Nicholas Pica did not obtain medical treatment for § 87(2)(b)

§ 87(2)(b) (Board Review 06 and 07) stated that while attempting to show an apartment to prospective tenants, § 87(2)(b) then his tenant, tackled him to the ground, causing § 87(2)(b) head to strike the paved brick patio floor. § 87(2)(b) was wearing a wool winter hat and believed that the hat prevented him from sustaining a bruise or laceration, although he struck his head on the ground fairly hard. § 87(2)(b) then called 911 for assistance. The NYPD's Communications Division informed the investigation that the audio for the 911 calls and radio communications pertaining to this incident were unavailable. However, according to a Sprint report (Board Review 08), § 87(2)(b) reported that there were no injuries.

PO Campisi and PO Lynch arrived on scene within 10 to 15 minutes. After § 87(2)(b) told the officers what had occurred, PO Campisi placed § 87(2)(b) under arrest. § 87(2)(b) did not feel any pain at that time. He believed that this was because of adrenaline and the shock of being arrested. Once inside of the RMP, however, § 87(2)(b) felt pain on the back of his head. While en route to the stationhouse, § 87(2)(b) asked both PO Campisi and PO Lynch to take him to a hospital. He informed them that he was feeling sharp pain on his head and wanted to visit a hospital in order to make sure that his head was not seriously injured. PO Lynch responded that someone would attend to his medical concerns once they arrived at the stationhouse. § 87(2)(b) believed PO Campisi also heard his request for medical attention, as the RMP was otherwise quiet when he and PO Lynch spoke, and due to PO Campisi's proximity to them.

When they arrived outside of the stationhouse, § 87(2)(b) again asked PO Campisi and PO Lynch for medical assistance, in order to ensure his head was not seriously injured, but the officers ignored his question and did not respond. When § 87(2)(b) requested medical attention again, while outside of the stationhouse, PO Campisi said that § 87(2)(b) would receive medical assistance later.

§ 87(2)(b) and the officers then entered the stationhouse. PO Campisi and PO Lynch brought § 87(2)(b) in front of the desk, where an officer, identified by the investigation as Sgt. Danielle Florit of the 105th Precinct, was seated. § 87(2)(b) did not make any complaint regarding his medical condition while in Sgt. Florit's presence.

PO Campisi then escorted § 87(2)(b) around a corner and lodged him in a holding cell. PO Campisi made § 87(2)(b) remove his hat, but § 87(2)(b) did not then feel any

laceration on his head. PO Campisi departed from the cell area, and § 87(2)(b) did not see him or PO Lynch again.

§ 87(2)(b) spoke briefly with another prisoner, identified by the investigation as § 87(2)(b). Subsequently, an officer identified by the investigation as PO Pica appeared in the cell area and told § 87(2)(b) that he was processing the arrest. He brought § 87(2)(b) a cup of water. § 87(2)(b) asked PO Pica for medical assistance, but PO Pica explained to § 87(2)(b) that he would process the arrest very quickly so that § 87(2)(b) could be on his way and visit a hospital. § 87(2)(b) told PO Pica that he did not want to wait for medical treatment and that the pain in his head was worsening as he waited. PO Pica told § 87(2)(b) not to worry about it and then immediately left the cell area. § 87(2)(b) remained in the cell for approximately three hours. During this period of time he never received medical treatment. Finally, PO Pica returned to the cell area and released § 87(2)(b) with a Desk Appearance Ticket. § 87(2)(b) then departed from the stationhouse.

§ 87(2)(b) went home, changed his clothes, and then visited § 87(2)(b). § 87(2)(b) did not tell hospital staff that he had been in police custody.

§ 87(2)(g) in § 87(2)(b) initial online complaint, he stated that his head was already in pain when PO Campisi placed him under arrest, § 87(2)(g). § 87(2)(b) also stated in his online complaint § 87(2)(g) that he requested medical attention at the scene of the arrest.

PO Campisi (Board Review 09) stated that upon arrival at the scene of the altercation, he saw § 87(2)(b) outside, but he did not know who § 87(2)(b) was. EMS was already on scene. He and PO Lynch entered the building and spoke with § 87(2)(b) who said that § 87(2)(b) had struck him in the face, causing a laceration to his lip. PO Campisi saw the laceration on § 87(2)(b) lip, which was still bleeding. The officers then went outside and spoke to § 87(2)(b) in order to obtain his side of the story. § 87(2)(b) also described a physical altercation, but he did not have any apparent injury and did not complain of any pain, injury, or any other medical need. PO Campisi did not remember if § 87(2)(b) was wearing a hat. Subsequently, a witness corroborated § 87(2)(b) story. On the basis of this information, PO Campisi decided to arrest § 87(2)(b).

PO Campisi and PO Lynch returned outside, placed § 87(2)(b) under arrest, and then placed § 87(2)(b) in the rear of the RMP. PO Campisi never saw § 87(2)(b) speak with any member of EMS at the scene of the arrest. Whether or not § 87(2)(b) had been wearing a hat, he did not wear one inside the RMP, as this was not allowed. PO Campisi did not observe any injury on § 87(2)(b) head.

PO Campisi and PO Lynch transported § 87(2)(b) to the 105th Precinct stationhouse. Only PO Campisi and PO Lynch were in the RMP with § 87(2)(b). The drive took between five and ten minutes. During the drive the officers explained to § 87(2)(b) why he was under arrest. § 87(2)(b) asked how long the process would take and PO Campisi said he was unsure. He informed § 87(2)(b) that he was not the arresting officer and told § 87(2)(b).

§ 87(2)(b) that the arresting officer would meet him at the stationhouse. En route § 87(2)(b) did not complain of any pain or injuries and did not request medical attention. PO Campisi did not remember if there was music playing inside the vehicle en route to the stationhouse.

Upon arrival at the stationhouse PO Campisi and PO Lynch brought § 87(2)(b) in front of the desk, where Sgt. Florit took his pedigree information, and then PO Campisi lodged § 87(2)(b) in a cell. Meanwhile, PO Lynch remained near the desk. PO Campisi did not remember if there were any other prisoners in the same cell or the adjacent cells. § 87(2)(b) told PO Campisi that his head hurt and that he wanted medical attention. PO Campisi assumed that the head pain was the result of § 87(2)(b) fight with his tenant, but he did not recall if § 87(2)(b) specifically stated what had caused the pain to his head. Prior to this complaint, § 87(2)(b) had not exhibited any behavior which led PO Campisi to be concerned for § 87(2)(b) health. § 87(2)(b) never complained of nausea or dizziness. PO Campisi never suspected that § 87(2)(b) might have a concussion.

PO Campisi returned to the desk, where Sgt. Florit and PO Pica were waiting. PO Lynch was no longer there. PO Campisi told Sgt. Florit and PO Pica that § 87(2)(b) had requested medical attention, and Sgt. Florit and PO Pica acknowledged the information. PO Campisi then informed Sgt. Florit that he and PO Lynch would resume patrol. PO Campisi found PO Lynch outside, near the RMP, and they resumed patrol.

According to PO Campisi, § 87(2)(b) never requested medical attention prior to being lodged in the cells at the stationhouse, and PO Campisi never refused to obtain medical attention for § 87(2)(b). Neither did PO Lynch refuse to obtain medical attention for § 87(2)(b). PO Campisi did not know if PO Pica ever refused or failed to obtain medical attention for § 87(2)(b).

PO Lynch (Board Review 10) stated that when he and PO Campisi responded to the scene of the arrest, § 87(2)(b) was standing outside. EMS was already on scene. § 87(2)(b) introduced himself to the officers as the 911 caller and said that the other individuals were inside the residence. PO Lynch stayed with § 87(2)(b) while PO Campisi went inside to find the other civilians involved in the alleged assault. § 87(2)(b) informed PO Lynch that he had been involved in altercation with another male, and that a verbal dispute had turned physical. § 87(2)(b) said that he was pushed and fell to the ground, but he did not say that he had struck his head on the ground. During this conversation § 87(2)(b) made no mention of any injury or medical complaint and he did not appear to have any visible physical injury. PO Lynch did not recall if § 87(2)(b) was wearing a hat. § 87(2)(b) was calm and courteous during the interaction. He did not exhibit any behavior whatsoever that led PO Lynch to be concerned for his medical condition. PO Lynch believed it was likely, given the circumstances of the job, that he asked § 87(2)(b) if he was alright, but he did not recall specifically. As an ambulance was on scene, § 87(2)(b) could easily have requested medical attention, but he never did so.

PO Campisi then exited the residence and informed PO Lynch that on the basis of his investigation, he was placing § 87(2)(b) under arrest. He placed § 87(2)(b) in handcuffs and then placed § 87(2)(b) in the rear of the RMP.

PO Lynch and PO Campisi transported § 87(2)(b) to 105th Precinct stationhouse. PO Campisi was the operator and PO Lynch sat in the front passenger's seat. § 87(2)(b) sat in the rear passenger's-side seat. En route the officers spoke with § 87(2)(b) who was primarily concerned with the arrest process. During the ride from the arrest location to the 105th Precinct stationhouse § 87(2)(b) did not make any complaint about his medical condition and did not request medical attention. He did not exhibit any behavior which led PO Lynch to be concerned for § 87(2)(b) health.

Upon arrival at the stationhouse, the officers brought § 87(2)(b) in front of the desk, where Sgt. Florit was stationed. The officers took § 87(2)(b) pedigree information and entered him in the book. There was no conversation whatsoever about § 87(2)(b) medical condition. § 87(2)(b) was calm and compliant.

An officer lodged § 87(2)(b) in the cells, but PO Lynch did not remember who did so. He was not present when § 87(2)(b) was lodged. He did not recall if PO Campisi lodged § 87(2)(b). PO Pica, who was taking the arrest, arrived at the stationhouse after § 87(2)(b) was lodged. PO Lynch did not witness any conversation between PO Campisi and PO Pica about § 87(2)(b). Likewise, he did not witness any conversation between Sgt. Florit and PO Campisi about § 87(2)(b). PO Lynch never witnessed any interaction between § 87(2)(b) and PO Campisi or PO Pica in the cell area. PO Lynch never heard § 87(2)(b) make any complaint about his medical condition while at the stationhouse and never learned about any such complaint, from PO Campisi or from anyone else. Ultimately, PO Campisi and PO Lynch resumed patrol. PO Lynch did not see or have any further interaction with § 87(2)(b).

To PO Lynch's knowledge, § 87(2)(b) never made any complaint about his medical condition or requested medical attention while in police custody. Further, to PO Lynch's knowledge, § 87(2)(b) never received medical attention while in police custody.

PO Pica (Board Review 11) stated that on the date of the incident, he received a phone call from Sgt. Florit, requesting his presence at the stationhouse. Sgt. Florit also reassigned his partner, PO Cloghessy, to another sector. PO Pica arrived at the 105th Precinct stationhouse and met with PO Campisi at the desk. PO Campisi informed PO Pica of § 87(2)(b) arrest. Sgt. Florit was at the desk at that time. PO Campisi told PO Pica that § 87(2)(b) had attacked his tenant, but PO Campisi did not provide any other information to PO Pica. Only PO Pica, PO Campisi, and Sgt. Florit were present during this conversation.

PO Campisi did not inform PO Pica that § 87(2)(b) had complained of any pain or injury, or that § 87(2)(b) had requested medical attention. Sgt. Florit also did not inform PO Pica that § 87(2)(b) had complained of any pain or injury or had requested medical attention. PO Pica did not learn about any interaction between Sgt. Florit and § 87(2)(b) that occurred prior to his arrival at the desk.

Sgt. Florit told PO Pica to process the arrest. PO Campisi had already lodged § 87(2)(b) in a cell. PO Pica could not see the cells from the desk area, as they were behind a wall, behind the

desk. PO Pica went to the cells and met § 87(2)(b) there. He had not previously seen or interacted with § 87(2)(b) whatsoever. § 87(2)(b) appearance was normal. PO Pica did not remember what he was wearing or if he was wearing a hat of any sort. PO Pica did not remember if he saw any laceration or bruising anywhere on § 87(2)(b) head. § 87(2)(b) did not complain of any pain to his head, or of nausea or dizziness, or of any symptom consistent with a concussion. PO Pica did not remember if there were any other prisoners in the cells. PO Pica informed § 87(2)(b) of the charges he faced and told him that he would apply for a DAT, so that § 87(2)(b) process would be expedited. PO Pica also asked § 87(2)(b) if he needed anything, and § 87(2)(b) asked for a cup of water. PO Pica brought § 87(2)(b) a cup of water and then departed from the cell area.

PO Pica then began processing the arrest. The DAT request was granted at 15:10, and § 87(2)(b) left the stationhouse just after 15:10, when the DAT was approved—approximately two hours after PO Pica was assigned the arrest. During those two hours PO Pica was in the desk area, at a computer roughly five feet from the desk. He was also charged with guarding § 87(2)(b) and so he returned to the cell area multiple times. However, he had no conversation with § 87(2)(b) whatsoever during these checks. He did not observe any behavior on § 87(2)(b) part that raised his concern regarding § 87(2)(b) medical condition. § 87(2)(b) never expressed concern for his own medical condition and never requested medical attention. No specific circumstance regarding § 87(2)(b) medical condition ever brought PO Pica's attention to the cell area. PO Pica never observed any interaction between § 87(2)(b) and Sgt. Florit or any other officer.

PO Pica stated that to his knowledge, § 87(2)(b) never complained of any medical condition whatsoever—to PO Pica or to any other officer.

Sgt. Florit (Board Review 12) stated that she was at the desk when an officer brought § 87(2)(b) into the stationhouse. She did not recall whether PO Pica, the arresting officer, or PO Campisi, who transported him, was at the desk at that time. She did not have any knowledge of § 87(2)(b) medical condition prior to his appearance in front of the desk. She did not remember which officers were there with § 87(2)(b). Sgt. Florit did not recall § 87(2)(b) physical condition when he arrived in front of the desk. She did not recall whether he had any visible physical injury. He did not describe an injury to his head or state that he felt dizzy or nauseous. He did not describe any medical concern and did not request medical attention while at the desk. There was nothing unusual about § 87(2)(b) interaction with her or with the other officer or officers at the desk. An officer logged § 87(2)(b) into the command log and took his pedigree information. An officer then lodged § 87(2)(b) in a cell, but Sgt. Florit did not recall who lodged him there.

After § 87(2)(b) was lodged, no officer ever informed Sgt. Florit that § 87(2)(b) made any complaint about his medical condition. She did not interact with § 87(2)(b) in the cell area, or elsewhere, afterward. She never observed him to have any physical injury or to exhibit any behavior that raised her concern regarding his medical condition. PO Campisi never told Sgt. Florit that § 87(2)(b) had complained of pain to his head. During § 87(2)(b) stay at the stationhouse, Sgt. Florit did not witness and was not informed of any interaction between any officer and § 87(2)(b) in the cell area. No one ever called EMS for

§ 87(2)(b) He never received medical attention. Sgt. Florit did not later learn of any medical concern regarding § 87(2)(b) whatsoever.

The command log entry for § 87(2)(b) arrest (Board Review 13), made at 12:45 PM, indicates that when § 87(2)(b) appeared in front of the desk, his physical condition was “apparently normal.”

PO Ryan Cloghessy of the 105th Precinct (Board Review 14)—PO Pica’s partner—testified that he did not enter the 105th Precinct house when PO Pica arrived there to process § 87(2)(b) arrest.

§ 87(2)(b) (Board Review 15, 16, and 17) stated he was already in a cell inside of the 105th Precinct stationhouse when an officer, identified by the investigation as PO Campisi, lodged § 87(2)(b) in a cell. PO Campisi then departed and did not return. § 87(2)(b) told § 87(2)(b) that he was a landlord and that he had been in a physical altercation with a tenant, that the tenant had attacked him, and that he, but not his tenant, had been arrested. § 87(2)(b) also said that he had been injured during the altercation; he had struck his head on something and wanted to go the hospital. A second officer, identified by the investigation as PO Pica, then entered the cell area. § 87(2)(b) and § 87(2)(b) both requested water and PO Pica brought them cups of water. § 87(2)(b) told PO Pica that he wanted to go to the hospital. PO Pica said that he was going to finish all of the arrest paperwork and that they would “see where it goes from there.” § 87(2)(b) protested, saying that he needed to go to the hospital because he had struck his head. § 87(2)(b) did not recall any response from PO Pica, who exited the cell area. § 87(2)(b) did not observe § 87(2)(b) request medical attention from any other officer or at any other time. Later, when § 87(2)(b) was released, § 87(2)(b) was still lodged in a cell. § 87(2)(b) never saw § 87(2)(b) receive medical attention.

A copy of the DAT issued to § 87(2)(b) (Board Review 18), provided by § 87(2)(b) shows that the DAT was issued at 2:37 PM. The command log for the 105th Precinct shows that § 87(2)(b) s DAT was issued at 2:50 PM. The investigation obtained § 87(2)(b) medical records from § 87(2)(b) (privileged documents), § 87(2)(a) PHL § 87(2)(g)

§ 87(2)(b)

§ 87(2)(b)

§ 87(2)(b)

§ 87(2)(b)

According to *NYPD Patrol Guide Procedure 210-04*, officers are required to obtain medical treatment for prisoners who require medical attention (Board Review 19).

§ 87(2)(g)

§ 87(2)(g)

§ 87(2)(g)

§ 87(2)(g)

§ 87(2)(g)

§ 87(2)(g)

§ 87(2)(g)

§ 87(2)(g) [Redacted text block]

It is therefore recommended that **Allegations A and B** be closed as **unsubstantiated**.

§ 87(2)(g) [Redacted text block]

§ 87(2)(g) [Redacted text block]

it is recommended that **Allegation C** be closed as **substantiated**.

Squad: 1

Investigator: _____
Signature Print Date

Squad Leader: _____
Title/Signature Print Date

Reviewer: _____
Title/Signature Print Date